

**BOARD OF EDUCATION OF THE BRECKSVILLE-BROADVIEW HEIGHTS CITY
SCHOOL DISTRICT RESOLUTION**

The Brecksville-Broadview Heights City School District Board of Education (the “Board”) met **electronically** in _____ session on the ____ day of April, 2020, with the following members present:

_____ moved for the adoption of the following Resolution:

RESOLUTION #_____

**A RESOLUTION RATIFYING THE DISTRICT’S DONATION OF PERSONAL
PROTECTIVE EQUIPMENT TO ELIGIBLE NON-PROFIT ORGANIZATIONS
PURSUANT TO AND IN ACCORDANCE WITH OHIO REVISED CODE 3313.41 DUE
TO THE COVID-19 PANDEMIC**

WHEREAS, pursuant to Ohio Revised Code Section (“RC”) 3313.17, the Board is a body politic and corporate and capable of acquiring, holding, possessing, and disposing of real and personal property;

WHEREAS, RC 3313.41 provides that when a school district board of education has property that the board, by resolution, finds is not needed for school district use, the board may donate that property if the fair market value of the property is, in the opinion of the board, two thousand, five hundred dollars (\$2,500.00) or less;

WHEREAS, RC 3313.41 further provides that the property may be donated to an eligible nonprofit organization that is located in this State and is exempt from federal income taxation pursuant to 26 U.S.C. § 501(a) and (c)(3), and before donating any property, the school district board of education shall adopt a resolution expressing its intent to make unneeded district property available to these organizations;

WHEREAS, RC 3313.41 further provides that the resolution shall include guidelines and procedures the school district board of education considers to be necessary to implement the donation program and shall indicate whether the school district will conduct the donation program or the board will contract with a representative to conduct it;

WHEREAS, RC 3313.41 further provides that the resolution shall include within its procedures a requirement that any nonprofit organization desiring to obtain donated property shall submit a written notice to the board or its representative;

WHEREAS, on March 9, 2020 the Governor of the State of Ohio issued Executive Order 2020-01D, declaring a state of emergency to protect the well-being of the citizens of the Ohio from the dangerous effects of COVID-19;

WHEREAS, RC 5502.24 provides political subdivisions the authority to dispense with certain time-consuming procedures and formalities prescribed by law during certain exigent circumstances.

WHEREAS, the Director of the Ohio Department of Health (the “Director”) issued school closure orders closing school buildings in the State of Ohio, including the Brecksville-Broadview Heights City School District (the “District”) to students, and subsequently extending such closure until at least May 1, 2020;

WHEREAS, the Board owns personal protective equipment (“PPE”), which in the Board’s opinion, does not exceed the value of two thousand, five hundred dollars (\$2,500.00) and is not currently needed for use by the District due to the ordered closure of Ohio school to students;

WHEREAS, the Governor of Ohio has requested that PPE be donated to assist healthcare workers and first responders due to exigent need for such resources as a result of the PPE shortage, and this request has been published in numerous newspapers, online sites, and social media platforms and in accordance with RC 3313.41, such publication serves as written notice to the Board that nonprofit organizations desire to obtain the Board’s PPE through donation;

WHEREAS, due to the exigent circumstances associated with the need for donation of PPE to assist healthcare workers and first responders, the District, in dispensing with certain time-consuming procedures and formalities prescribed by law, including but not limited to notice by publication, on [INSERT DATE] donated [INSERT DESCRIPTION] valued at \$[INSERT VALUE], to certain eligible nonprofit organizations in Ohio that are exempt from federal income taxation pursuant to 26 U.S.C. § 501(a) and (c)(3); and

WHEREAS, the Board has determined that it was in the best interests of the wider school community and society to donate its PPE in accordance with this Resolution and wishes to ratify any such action taken by the District due to such exigent circumstances.

NOW, THEREFORE, BE IT RESOLVED by the Board:

Section 1. Pursuant to and in accordance with Ohio Revised Code (“RC”) 3313.41 and RC 5502.24, the Board hereby ratifies the District’s donation of PPE, which in the Board’s opinion does not exceed the value of two thousand, five hundred dollars (\$2,500.00), to certain eligible nonprofit organizations in Ohio that are exempt from federal income taxation pursuant to 26 U.S.C. § 501(a) and (c)(3), because the PPE property is no longer currently needed for District use based on the closure of school buildings to students, and because

there exists an exigent need for such PPE by healthcare workers and first responders due to the COVID-19 pandemic.

Section 2. The Board President, Superintendent, and/or Treasurer are authorized and directed to take all other such actions as are necessary or appropriate to accomplish the objectives of this Resolution.

Section 3. It is hereby found and determined that all formal actions of this Board concerning and relating to the adoption of this Resolution were adopted in an open meeting of this Board, and that all deliberations of this Board and any of its committees that resulted in such formal action were in meetings open to the public or in executive session as permitted by Ohio law.

Section 4. This Resolution shall take effect and be in force from and after the earliest period allowed by law.

Upon roll call, the vote resulted as follows:

_____	_____
_____	_____
_____	_____
_____	_____
_____	_____

ADOPTED by the Brecksville-Broadview Heights City School District Board of Education this ____ day of April, 2020.

CERTIFICATION OF TREASURER

I, Craig G. Yaniglos, Treasurer of the Board of Education of the Brecksville-Broadview Heights City School District, hereby certify that the foregoing is a true and correct copy of a Resolution duly adopted by said Board of Education at its _____ meeting on April ____, 2020.

Treasurer
Brecksville-Broadview Heights City School District
Board of Education